

*Peer Review Framework for Predictive Analytics
in Humanitarian Response*

MODEL REPORT:

Cooper/Smith population mobility model

November 2021

OCHA CENTRE FOR HUMANITARIAN DATA



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COOPER / SMITH



Model Report: Cooper/Smith population mobility model

1. Background

In 2020 the technical assistance firm [Cooper/Smith](#) developed a population mobility model in Malawi with the support of the [Digital Impact Alliance](#) (DIAL) and the Malawi Ministry of Health (MoH). The mobility model provides insight on population localization and movement patterns. It enables the MoH and local stakeholders to have a near real-time view on where the population is, providing a much-needed complement to the census.

Between November 2020 and January 2021, the OCHA Centre for Humanitarian Data (the Centre) engaged with technical and ethical experts¹ to conduct an independent review of Cooper/Smith's model in Malawi, according to the Centre's [Peer Review Framework for Predictive Analytics in Humanitarian Response](#). Between February and November 2021 The Centre worked with Cooper/Smith and our reviewers to finalise the recommendations presented below.

2. Main Findings and Recommendations

The population mobility model provides insight on population localization and movement patterns, enabling the Ministry of Health (MoH) of Malawi and local stakeholders to have an almost real-time view on where the population is. It signals when there is a large gathering that is two standard deviations from the mean number of subscribers in that location (traditional authority or district level) over the last 30-days.

The primary user of this model is the Government of Malawi's Public Health Emergency Operations Center (PHEOC). The model has an automated signal that will send emails to PHEOC members and the PHEOC's Incident Management System, which logs, triages, and actions reported incidents.

¹ For this project we collaborated with technical experts from UN Global Pulse and ethics experts from the Centre for Humanitarian Data.

You can find all the documentation regarding the model, its application and the review process at the following links:

- The [Model Card](#) describes version 2 of the model developed in Q2 2020.
- The [Model Evaluation Matrix](#) was completed in November 2020 by experts from the OCHA Centre for Humanitarian Data and UN Global Pulse.
- The [Implementation Plan](#) was completed in November 2020. It summarizes the concrete actions that the model will trigger or inform.
- The [Ethical Matrix](#) aims to identify all stakeholders and potential issues regarding the intended use of the model. The Ethical Matrix was completed In January 2021.

A summary of the main findings and recommendations is provided below.

2.1 Technical Review

Model development and documentation

- The Centre recommended clearly distinguishing the three modeling tasks and clarifying which methods are being used to perform each of the three tasks when presenting the model to potential stakeholders and end users.
 - This recommendation has been considered and met by Cooper/Smith, as detailed in the [Model Evaluation Matrix](#) and the [Model Documentation](#).

Model Evaluation

- Depending on data availability, we recommend performing a quantitative analysis of model performance.
- Additional datasets used to independently validate the model (Google Mobility; observed events counts; case counts) all have limitations. We recommend that Cooper/Smith should continue seeking alternative sources to compare estimates and understand correlation/discrepancies between them.
- Cooper/Smith should continue to operate a feedback process from model end users and health care workers on the ground, and we recommend enlarging it to community members and leaders. Validating findings from the model with a larger group of actors (e.g. community health workers, community leaders) would ensure greater accuracy and usefulness.

2.2 Ethical Review

False Positives and Negatives

When the model produces a false alarm this is considered a 'false positive'. When the model misses an event this is considered a 'false negative'. False positives and negatives can cause costly interventions or lack thereof, for example sending personnel or resources to an area where they were not urgently needed.

- Cooper/Smith has identified a risk mitigation strategy that includes an ongoing feedback loop with primary stakeholders about how to handle false alarms, helping decrease the level of concern. The Centre recommends continuing to follow this strategy closely to prevent any potential issues from materializing.

Overreaction

Overreaction is a decision informed by the model output that leads to action that is too impactful compared to the need that should be addressed.

- Cooper/Smith has already established a decision process and protocol for the use of the model to mitigate risk related to Overreaction. In future applications of the model, we suggest creating a limited list of decisions that may be informed by the model output, in order to ensure the output is not used to inform decisions leading to action that is incompatible with applicable guidance and ethical principles, including the Humanitarian Principles.

Inaction

When no action is taken based on the model output this is considered 'inaction'.

- The Centre recommends that the risk reduction strategy identified in the [Model card](#) be followed closely and its implementation be monitored. In future model deployments, the Centre recommends the model only be deployed when there is an established plan for action based on its outputs.

Privacy / Rights Infringement

When data or information is managed or exposed in ways that infringe upon human rights, this is considered a 'privacy / rights infringement'.

- The data currently used in the model is anonymized and aggregated. Should the model use personal or otherwise sensitive data in future applications, we suggest its management to be checked by legal / data protection experts.

Gaming

When stakeholders can act according to the algorithm's rules to achieve an intended outcome, this is considered 'gaming'.

- The Centre recommends that any significant changes in model behavior be monitored closely in order to assess whether they might be caused by gaming. Sudden changes that affect the outcome of the model could indicate that the target population is adjusting its behavior to avoid gatherings from being detected.

**IN THE UNITED STATES COURT OF APPEALS
FOR THE FIFTH CIRCUIT**

No. 14-31037

United States Court of Appeals
Fifth Circuit

FILED

July 1, 2015

Lyle W. Cayce
Clerk

JONATHAN P. ROBICHEAUX; DEREK PENTON;
NADINE BLANCHARD; COURTNEY BLANCHARD,

Plaintiffs–Appellants,

versus

JAMES D. CALDWELL,
in His Official Capacity as the Louisiana Attorney General,
Also Known as Buddy Caldwell,

Defendant–Appellee.

* * * * *

JONATHAN P. ROBICHEAUX; DEREK PENTON; NADINE BLANCHARD;
COURTNEY BLANCHARD; ROBERT WELLES; GARTH BEAUREGARD,

Plaintiffs–Appellants,

versus

DEVIN GEORGE, in His Official Capacity as the State Registrar
and Center Director at Louisiana Department of Health and Hospitals;
TIM BARFIELD,
in His Official Capacity as the Louisiana Secretary of Revenue;
KATHY KLIEBERT, in Her Official Capacity as
the Louisiana Secretary of Health and Hospitals,

Defendants–Appellees.

* * * * *

No. 14-31037

FORUM FOR EQUALITY LOUISIANA, INCORPORATED;
JACQUELINE M. BRETTNER; M. LAUREN BRETTNER;
NICHOLAS J. VAN SICKELS; ANDREW S. BOND; HENRY LAMBERT;
R. CAREY BOND; L. HAVARD SCOTT, III; SERGIO MARCH PRIETO,

Plaintiffs–Appellants,

versus

TIM BARFIELD, in His Official Capacity as
Secretary of the Louisiana Department of Revenue;
DEVIN GEORGE, in His Official Capacity as Louisiana State Registrar,

Defendants-Appellees.

Appeals from the United States District Court
for the Eastern District of Louisiana

Before HIGGINBOTHAM, SMITH, and GRAVES, Circuit Judges.

JERRY E. SMITH, Circuit Judge:

The plaintiffs are seven same-sex couples and an organization whose membership includes same-sex couples and their families. The couples seek to marry in Louisiana or to have their marriage in another state recognized in Louisiana. They sued the state defendants for declaratory and injunctive relief, asking the district court to declare unconstitutional article XII, § 15 of the Louisiana Constitution, article 3520(B) of the Louisiana Civil Code, and any other Louisiana law that prohibits same-sex couples from marrying in Louisiana or having their marriages recognized. The various plaintiffs claimed

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violations of the Due Process and Equal Protection Clauses of the Fourteenth Amendment, the Full Faith and Credit Clause, and 42 U.S.C. § 1983. The actions were consolidated.

On September 3, 2014, the district court, without the benefit of subsequent controlling Supreme Court precedent, granted defendants' motion for summary judgment and denied plaintiffs' motion for summary judgment. The plaintiffs appealed. After full briefing, including participation by numerous *amici curiae*, this court heard expanded oral argument on January 9, 2015.

While this appeal was under submission, the Supreme Court decided *Obergefell v. Hodges*, No. 14-556, 2015 U.S. LEXIS 4250 (U.S. June 26, 2015). In summary, the Court declared that

the right to marry is a fundamental right inherent in the liberty of the person, and under the Due Process and Equal Protection Clauses of the Fourteenth Amendment couples of the same-sex may not be deprived of that right and that liberty. The Court now holds that same-sex couples may exercise the fundamental right to marry. No longer may this liberty be denied to them. *Baker v. Nelson* [, 409 U.S. 810 (1972),] must be and now is overruled, and the State laws challenged by petitioners in these cases are now held invalid to the extent they exclude same-sex couples from civil marriage on the same terms and conditions as opposite-sex couples.

Id. at *41–42. “It follows that the Court must also hold—and it now does hold—that there is no lawful basis for a State to refuse to recognize a lawful same-sex marriage performed in another State on the ground of its same-sex character.” *Id.* at *50.

Having addressed fundamental rights under the Fourteenth Amendment, the Court, importantly, invoked the First Amendment, as well:

Finally, it must be emphasized that religions, and those who adhere to religious doctrines, may continue to advocate with utmost, sincere conviction that, by divine precepts, same-sex marriage should not be condoned. The First Amendment ensures that religious organizations

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and persons are given proper protection as they seek to teach the principles that are so fulfilling and so central to their lives and faiths, and to their own deep aspirations to continue the family structure they have long revered. The same is true of those who oppose same-sex marriage for other reasons. In turn, those who believe allowing same-sex marriage is proper or indeed essential, whether as a matter of religious conviction or secular belief, may engage those who disagree with their view in an open and searching debate. The Constitution, however, does not permit the State to bar same-sex couples from marriage on the same terms as accorded to couples of the opposite sex.

Id. at *48–49.

Obergefell, in both its Fourteenth and First Amendment iterations, is the law of the land and, consequently, the law of this circuit¹ and should not be taken lightly by actors within the jurisdiction of this court. We express no view on how controversies involving the intersection of these rights should be resolved but instead leave that to the robust operation of our system of laws and the good faith of those who are impacted by them.

This court sought and promptly received letter advisories from plaintiffs and the state, asking their respective positions on the proper disposition in light of *Obergefell*. They are agreed that the judgment should be reversed and remanded for entry of judgment in favor of plaintiffs.

Because this court agrees that that is the required result, the judgment appealed from is REVERSED, and this matter is REMANDED for entry of judgment in favor of the plaintiffs. The district court must act expeditiously on remand, especially in view of the declining health of plaintiff Robert Welles.

¹ If it were suggested that any part of the quoted passages is *obiter dictum*, we need only recall that although “[w]e are not bound by dicta, even of our own court [,] [d]icta of the Supreme Court are, of course, another matter.” *United States v. Becton*, 632 F.2d 1294, 1296 n.3 (5th Cir. 1980). “[W]e give serious consideration to this recent and detailed discussion of the law by a majority of the Supreme Court.” *Geralds v. Entergy Servs., Inc.*, 709 F.3d 448, 452 (5th Cir. 2013) (Reavley, J.).

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The court should enter final judgment on the merits (exclusive of any collateral matters such as costs and attorney fees) by July 17, 2015, and earlier if reasonably possible.²

The mandate shall issue forthwith.

² Any pending motions are denied as moot.

Territorial Sea Boundary

DENMARK-SWEDEN



**BUREAU OF
INTELLIGENCE
AND RESEARCH**

26

JULY 16, 1970

**ISSUED BY
THE GEOGRAPHER**

This paper is one of a series issued by The Geographer, Bureau of Intelligence and Research of the Department of State. The aim is to set forth the basis for national arrangements for the measurement of the territorial sea or the division of the continental shelf of maritime nations.

This research document is intended for background use only. This document does not represent an official acceptance of the United States Government of the line or lines represented on the charts or, necessarily, of the specific principles involved, if any, in the original drafting of the lines. Additional copies of the studies may be requested by mail from The Geographer, Department of State, Washington, D. C. 20520 or by phone (Telephone 63-220221 or 63-22022).

INTERNATIONAL BOUNDARY STUDY

Series A

LIMITS IN THE SEAS

No. 26

TERRITORIAL SEA BOUNDARY: DENMARK-SWEDEN

The Geographer
Office of the Geographer
Bureau of Intelligence and Research

TERRITORIAL SEA BOUNDARY: DENMARK-SWEDEN

The Kingdom of Denmark and the Kingdom of Sweden signed a Declaration concerning the boundaries in the Sound (Sund or Oresund) on January 30, 1932. The Declaration came into force on the date of signing. Both countries are parties to the 1958 Geneva Convention on the Continental Shelf.

The Declaration Between the Danish and Swedish Governments Concerning the Boundaries of the Sund set forth the following principles:

The Royal Danish Government and the Royal Swedish Government, having carefully considered the question of boundaries in the Sound, (limited in the north by a line from Gibjerghoved to Kullen, and in the south by a line from the Stevns lighthouse to Falsterbo Point), have found that the line hereinafter described affords a basis for the correct delimitation of the exercise by the two countries of the rights mentioned below:

In the northern part of the Sound from its northern limit to the site of the Lous Flak light and soundbuoy (lat. N. 55° 49' 36"; long. E. 12° 42' 42"), the line runs midway between the coast of Zealand and the Swedish mainland (Ven Island being disregarded).

From the site of the Lous Flak light - and sound - buoy, the line runs straight to the site of the Saltholm Flak lightbuoy N. E., (Lat. N. 55° 41' 55"; long. E. 12° 51' 00"), and thence in a southerly direction following straight lines drawn between the following four points:

1. Lat. N. 55° 38' 37", long. E. 12° 53' 54"
2. Lat. N. 55° 36' 49", long. E. 12° 53' 04"
3. Lat. N. 55° 32' 25", long. E. 12° 43' 57"
4. Lat. N. 55° 29' 19", long. E. 12° 43' 00"

The line is continued to the southern limit in accordance with rules corresponding to those applicable to the northern part of the Sound but is made up of straight lines determined by the following points:

4. Lat. N. 55° 29' 19", long. E. 12° 43' 06"
5. Lat. N. 55° 25' 52", long. E. 12° 36' 49"
6. Lat. N. 55° 20' 12", long. E. 12° 38' 42"

The geographical co-ordinates of the abovementioned points refer to the attached chart on which the line is marked.

The two Governments agree that the line in question shall form the boundary in the sound between the territorial waters of the two countries, as far as those territorial waters extend in accordance with the rules in force in this respect.

The Danish and Swedish Governments undertake to refrain in the Sound, even outside territorial waters, from erecting lighthouses, seamarks, or fixed installations of any kind whatever, to the east and west respectively of the said line, which shall also form the boundary for their right to mark and salvage wrecks and to take any other measures for the safety of navigation and the like. Fixed seamarks or other installations which may have been previously erected by Denmark on the east or by Sweden on the west of the said line shall be removed by the State to which they belong, after negotiation between the competent Danish and Swedish authorities and within a period of six months from the date of signing the present Declaration.

This Declaration involves no change in the existing rules regarding pilotage in the Sound (cf. Declaration of August 14, 1873, with the Annex of October 12, 1911), or in the regulations applicable to fishing in the navigable waterways adjacent to Denmark and Sweden (cf. Convention of July 14, 1899, and Declaration of October 5, 1907.)

In faith whereof the undersigned, being duly authorized for the purpose have signed this Declaration, which is drawn up in the Danish and Swedish languages, and have thereto affixed their seals.

Done at Stockholm, in duplicate, January 30, 1932.

ANALYSIS

For the analysis of the territorial sea boundary (TSB) the following chart was utilized: U.S. Naval Oceanographic Chart H.O. 4868, 13th Edition, December 16, 1968.

NOTE: There are cartographic errors on the map accompanying this study.

1) In the legend, the symbol for (a) terminal or turning point, and (b) the line identifier for the geographical limits of the Sound, have been reversed.

2) The registration of the plate for the overprinted red line has been inadvertently offset to the left. The TSB segment 1-2-3-4 should not follow the boundary on the base chart (the black-dashed line), as the declaration language does not correspond completely with the base chart data concerning this portion of the TSB. This discrepancy between the declaration language and Chart H.O. 4868 could result from the different data used in compiling the base chart. On the other hand, the TSB segment from Saltholm Flak to Point 1 and the line from 4 to 5 to 6 should agree with the boundary on the base chart.

The TSB extends for a distance of 63.3 nautical miles with the average distance between the nine boundary points of 7 nautical miles. The average water depth at the terminal or turning points is 8 fathoms with minimum depths of 5 and 13 fathoms respectively.

The northern terminus of the TSB is the midpoint of the line delimiting the northern geographical limits of the Sound, i.e. the line connecting Kullen and Gilbjerg Hoved.

From the northern terminus to Lous Flak, the TSB is an equidistance line 28 nautical miles long. This line ignores the presence of the Swedish offshore island of Ven and the boundary is equidistant from the mainlands and the latter is not.

The Declaration states that the second point of the TSB is the Lous Flak light buoy and it is equidistant from the two mainlands. However, the location of Lous Flak (per the Declaration) and the location on the base chart do not agree; the former is equidistant from the mainlands and the latter is not. This disparity is likely due to the discrepancy in datum planes of the base chart and the Declaration chart.

The TSB from Lous Flak to Saltholm Flak is not equidistant between the Danish and Swedish mainlands. The distance between the two points is 9 nautical miles.

From Saltholm Flak to Point 1 of the TSB is a distance of 3.75 nautical miles. Point 1 is equidistant between Svaneklapper, Denmark and Limhamn, Sweden. However the fact that Point 1 is equidistant probably had little bearing on the boundary delimitation.

The distance from Point 1 to Point 2 is 1.9 nautical miles. This segment of the TSB does not correspond precisely with the boundary on the base chart H.O. 4668: again the problems of different datum planes. The TSB according to the Declaration lies up to 1/8 nautical mile to the east of the boundary shown on the base chart.

The TSB from Point 2 to 3 also does not correspond with the boundary on the base chart. The line 2-3 lies to the southeast of the base chart boundary about 1/8 nautical mile. The distance between the two points is 6.75 nautical miles.

From Point 3 to 4 is a distance of 3.15 nautical miles. The TSB closely approximates the boundary on the base chart, but lies slightly to the east of it.

The TSB segment 4-5 corresponds precisely with the boundary on the base chart. Points 5 and 6 are located equidistant from the respective mainlands. The distances between the points are 5 nautical miles from 4 to 5, and 5.75 nautical miles from 5 to 6.

The southern terminus of the TSB is Point 6, which according to the terms of the Declaration is the midpoint of the line delimiting the southern geographical limits of the Sound. The midpoint on the base chart between Stevns Lighthouse and Falsterbo Point is not Point 6: again the datum discrepancies between the base chart and the Declaration chart.

TSB Point	Distance between	Depth (fathoms)	Territory		
			Denmark		Sweden
Northern Terminus	28.0	13	Gilbjerg Hoved	(5.75)	Kullen
Lous Flak	9.0	12	Mainland	(4.25) (4.0)	
Saltholm Flak	3.75	8	Saltholm I	(2.90) (3.75)	Mainland
1	1.90	6	Svaneklapper I.	(3.0) (3.0)	Limhamn
2	6.75	5	Island	(2.25) (1.75)	Limhamn
3	3.15	5	Drogden I	(0.65) (5.25)	Bredegrund I.
4	5.0	7	Drogden I	(2.90) (3.70)	Bredegrund I.
5	5.75	7	Drogden I	(7.25) (7.50)	Falsterbo
6		9	Stevns Lighthouse	(6.75) (6.40)	Falsterbo Pt.

SUMMARY

The northern and southern limits of the TSB are based on the equidistance principle, that is, the segment from the northern terminus to Lous Flak, and the portion joining 4-5-6. Points 5 and 6 are equidistant points. The remainder of the TSB was established through negotiation apparently with little concern with the coastal configuration.

The TSB from the northern terminus to Lous Flak is an example where the presence of an offshore island (Ven) was ignored and the equidistant line was delimited between the respective mainlands.

Denmark-Sweden
Territorial Sea Boundary

- Territorial Sea Boundary
- Terminal or turning point
- Geographical Limits of the Sound

Source of Data: Office of the Geographer, Department of State



DENMARK-SWEDEN
ENTRANCE TO THE BALTIC
THE SOUND
(ØRESUND)

From Danish and Swedish charts to 1953
with additions to 1967

SOUNDINGS IN FATHOMS
reduced to approximate Mean Sea Level

HEIGHTS IN FEET ABOVE MEAN SEA LEVEL

For Symbols and Abbreviations, see Chart No. 1

MERCATOR PROJECTION
SCALE 1:136,920 AT LAT. 55°

NOTE

To place this chart on the European Datum, shift all parallels of latitude 3 seconds north and all meridians of longitude 5 seconds east. In effect, this shift changes the coordinate values of charted features as follows:

Kystbaken Light—Charted Position: 55° 54' 55" N. 12° 40' 55" E.
Conversion: -03" -05"
European Datum: 55° 54' 52" N. 12° 40' 50" E.

Coordinates of the Denmark-Sweden
Territorial Sea Boundary

- Lous Flak. 55°49'36"N. Lat. 12°42'42"E. Long.
- Saltholm Flak. 55°41'55"N. Lat. 12°51'00" E. Long.
- 55°38'37"N. Lat. 12°53'54"E. Long.
 - 55°36'49"N. Lat. 12°53'04"E. Long.
 - 55°32'25"N. Lat. 12°43'57"E. Long.
 - 55°29'19"N. Lat. 12°43'06"E. Long.
 - 55°25'52"N. Lat. 12°36'49"E. Long.
 - 55°20'12"N. Lat. 12°38'42"E. Long.

DENMARK

SWEDEN

M A R K

CAUTION
Foreign Naval ships are
prohibited from anchoring in or
passing through Copenhagen
Roadstead without permission

KØBENHAVN

AMAGER

KØGE BUGT

Store Heddinge

Stevens Lighthouse

Falsterbo Point

§ 906.9 Title restrictions and encumbrances on properties sold under a homeownership program.

(a) If the property is subject to indebtedness under the Annual Contributions Contract (ACC), HUD will continue to make any debt service contributions for which it is obligated under the ACC, and the property sold will not be subject to the encumbrance of that indebtedness.

(b) Upon sale of a public housing unit to a public housing tenant or eligible family, or to a PRE operating the units as non-public housing, in accordance with the HUD-approved homeownership program, HUD will execute a release of the title restrictions prescribed by the ACC. Because the property will no longer be subject to the ACC after sale, it will cease to be eligible for public housing Operating Fund or Capital Fund payments.

Subpart C—Purchaser Requirements

§ 906.11 Eligible purchasers.

Entities that purchase units from the PHA for resale to low-income families (purchase and resale entities or PREs) and low-income families are eligible to purchase properties made available for sale under a PHA homeownership program.

§ 906.13 Right of first refusal.

(a) In selling a public housing unit under a homeownership program, the PHA or PRE must initially offer the unit to the resident occupying the unit, if any, notwithstanding the requirements of §§ 906.15(a) and 906.15(c).

(b) This program does not require the PHA, when selling a unit that is a non-public housing unit, to offer the unit for sale first to the current resident of the unit.

§ 906.15 Requirements applicable to a family purchasing a property under a homeownership program.

(a) *Low-income requirement.* Except in the case of a PHA's offer of first refusal to a resident occupying the unit under § 906.13, a family purchasing a property under a PHA homeownership program must be a low-income family, as defined in section 3 of the 1937 Act (42

U.S.C. 1437a), at the time the contract to purchase the property is executed.

(b) *Principal residence requirement.* The dwelling unit sold to an eligible family must be used as the principal residence of the family.

(c) *Financial capacity requirement.* Eligibility must be limited to families who are capable of assuming the financial obligations of homeownership, under minimum income standards for affordability, taking into account the unavailability of public housing operating subsidies and modernization funds after conveyance of the property by the PHA. A homeownership program may, however, take account of any available subsidy from other sources. Under this affordability standard, an applicant must meet the following requirements:

(1) *Cost/income ratio.* On an average monthly estimate, the amount of the applicant's payments for mortgage principal and interest, plus insurance, real estate taxes, utilities, maintenance, and other regularly recurring homeownership costs (such as condominium, cooperative, or other homeownership association fees) will not exceed the sum of:

(i) 35 percent of the applicant's adjusted income as defined in 24 CFR part 913; and

(ii) Any subsidy that will be available for such payments;

(2) *Down payment requirement.* Each family purchasing housing under a homeownership program must provide a down payment in connection with any loan for acquisition of the housing, in an amount determined by the PHA or PRE, in accordance with an approved homeownership program. Except as provided in paragraph (c)(3) of this section, the PHA or PRE must permit the family to use grant amounts, gifts from relatives, contributions from private sources, and other similar amounts in making the down payment;

(3) The family must use its own resources other than grants, gifts, contributions, or similar amounts, to contribute an amount of the down payment that is not less than one percent of the purchase price of the housing. The PHA or PRE must maintain records that are verifiable by HUD

§ 906.17

24 CFR Ch. IX (4-1-04 Edition)

through audits regarding the source of this one percent contribution.

(d) *Other requirements established by the PHA.* A PHA may establish requirements or limitations for families to purchase housing under a homeownership program, including but not limited to requirements or limitations regarding:

- (1) Employment or participation in employment counseling or training activities;
- (2) Criminal activity;
- (3) Participation in homeownership counseling programs; and
- (4) Evidence of regular income.

§ 906.17 PHA handling of homeownership applications.

Families who are interested in purchasing a unit must submit applications to the PHA or PRE for that specific purpose, and those applications must be handled separately from applications for other PHA programs. Application for homeownership must not affect an applicant's place on any other PHA waiting list for rental units.

§ 906.19 Requirements applicable to a purchase and resale entity (PRE).

(a) *In general.* In the case of a purchase of units for resale to low-income families by a PRE, the PHA must have an approved homeownership program that describes the use of a PRE to sell the units to low-income families within 5 years from the date of the PRE's acquisition of the units.

(b) *PRE requirements.* The PHA must demonstrate in its homeownership program that the PRE has the necessary legal capacity and administrative capability to carry out its responsibilities under the program. The PHA's homeownership program also must contain a written agreement (not required to be submitted as part of the homeownership plan) that specifies the respective rights and obligations of the PHA and the PRE, and which includes:

- (1) Assurances that the PRE will comply with all provisions of the HUD-approved homeownership program;
- (2) Assurances that the PRE will be subject to a title restriction providing that the property must be resold or otherwise transferred only by conveyance of individual dwellings to eligible

families, in accordance with the HUD-approved homeownership program, or by reconveyance to the PHA, and that the property will not be encumbered by the PRE without the written consent of the PHA;

(3) Protection against fraud or misuse of funds or other property on the part of the PRE, its employees, and agents;

(4) Assurances that the resale proceeds will be used only for the purposes specified by the HUD-approved homeownership program;

(5) Limitation of the PRE's administrative and overhead costs, and of any compensation or profit that may be realized by the PRE, to amounts that are reasonable in relation to its responsibilities and risks;

(6) Accountability to the PHA and residents for the recordkeeping, reporting, and audit requirements of § 906.33;

(7) Assurances that the PRE will administer its responsibilities under the plan on a nondiscriminatory basis, in accordance with the Fair Housing Act, its implementing regulations, and other applicable civil rights statutes and authorities, including the authorities cited in § 5.105(a) of this title; and

(8) Adequate legal remedies for the PHA and residents, in the event of the PRE's failure to perform in accordance with the agreement.

(c) *Sale to low-income families.* The requirement for a PRE to sell units under a homeownership program only to low-income families must be recorded as a deed restriction at the time of purchase by the PRE.

(d) *Resale within five years.* A PRE must agree that, with respect to any units it acquires under a homeownership program under this part, it will transfer ownership to the PHA if the PRE fails to resell the unit to a low-income family within 5 years of the PRE's acquisition of the unit.

Subpart D—Program Administration

§ 906.23 Protections available to non-purchasing public housing residents.

(a) If a public housing resident does not exercise the right of first refusal under § 906.13, and the PHA determines

"When the Department of Veterans Affairs pointed to the State Veterans Cemetery program as the way forward for a Ft. Ord cemetery earlier this year, I set about finding a way to make it happen. I've been working with the VA for almost a decade to create a Ft. Ord cemetery and finally I can see light at the end of the tunnel," said Farr.

In order to clear the path for a State Veterans Cemetery, Farr wrote directing language into the FY07 Military Quality of Life and Veterans Affairs Appropriations Bill which passed the House Appropriations Committee this week. Farr's language:

- creates a pilot program so the VA and Fort Ord Reuse Authority (FORA) can develop a unique public-private partnership to fund a state veterans cemetery at Fort Ord; and
- puts California at the top of the list for State Veterans Cemetery Grant approval once an application is made.

"I'm well aware of the state's financial constraints - that's why I've cleared the path for the state to get federal money to cover 100% of construction costs and for the creation of a public-private partnership that will relieve the state of all budgetary obligations. Together, the Feds, the state and the local community can make this happen," said Farr.

This afternoon, Farr will be discussing this public-private partnership at the Annual FORA Legislative meeting - 3 p.m. at the FORA Conference Facility/Bridge Center.

Legislative language authored by Rep. Farr and approved by the House Appropriations Committee on May 10, 2006:

Under "Fort Ord Cemetery":

"The Committee notes the success of the military housing RCI as a public/private partnership. The Committee encourages the Department of Veterans Affairs to work with the Fort Ord Reuse Authority in Monterey, California to develop a pilot program to demonstrate the cost effectiveness of using public/private partnerships in establishing a state veterans cemetery at Fort Ord."

Under "Grants for Construction of State Veterans Cemeteries":

"The Committee encourages the Department to work with States for maximum usage of this grant program. Given that over ten percent of the nation's veterans reside in California, the Committee encourages the Department to work with the state of California as it applies for a grant."